

DIPLOMATIC WORKING DOCUMENT — MODULAR ANNEX

ANNEX R

Escalation Buffer Protocol

Modular Annex to the PEACE Memorandum of Understanding

Version 1.0 — June 2026

Closes Gap 4: Kinetic Friction and Escalation Management

AUTHORIZED NEGOTIATORS ONLY — CONFIDENTIAL — NOT FOR PUBLIC DISTRIBUTION

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PREAMBLE

Purpose

This Annex distinguishes between localized, tactical military incidents (which the Parties manage through de-confliction channels without triggering framework collapse) and strategic, bad-faith breaches (which activate Tier 2 or Tier 3 consequences under the parent framework). It establishes a rapid-response, back-channel de-confliction mechanism specifically designed to absorb field-level shocks during the critical implementation period and throughout the lifecycle of any parent framework.

Background

Recent kinetic friction in the region, including defensive military strikes near strategic facilities and intercepted ballistic missile activity, demonstrates that a zero-tolerance framework shatters within 48 hours of entry into force. The Parties require an escalation buffer that prevents a single rogue drone, panicky missile intercept, navigational error, or localized naval encounter from automatically triggering a total kinetic relapse while executive approvals are pending or during the sensitive early days of implementation.

The Escalation Buffer Protocol does not create immunity for military incidents. It creates a *thinking window* — a structured, time-bound period during which facts are established, intentions clarified, and de-escalation options explored before either Party feels compelled to respond with force. It preserves the core architecture of the parent framework while insulating it from the inevitable turbulence of field-level military operations in a high-tension environment.

Core Principles

Principle 1: Differentiation

Not every kinetic event is a breach. Tactical incidents that are localized, unintentional, or without strategic impact are managed through de-confliction. Strategic breaches that fundamentally undermine the framework activate consequences. The key is a rapid, neutral classification system.

Principle 2: Time, Not Immunity

The Escalation Buffer Period provides time for assessment and de-confliction. It does not provide immunity from consequences. If a Tactical Incident is later reclassified as a Strategic Breach, full consequences apply retroactively to the extent the parent framework permits.

Principle 3: Confidential De-Confliction

The back-channel mechanism operates under strict confidentiality to enable frank communication between the Parties without creating political vulnerabilities. Back-channel communications are not used as evidence of breach or admission in any proceeding.

Principle 4: Self-Defense Preserved

Nothing in this Annex limits the inherent right of self-defense under international law against an ongoing armed attack. The Escalation Buffer Period applies to responses to incidents, not to defense against active aggression.

Modularity Clause

This Annex is self-contained. The Parties incorporate it into any existing or future agreement through a single sentence of adoption. It does not amend or supersede conflicting provisions of any parent framework unless the Parties explicitly so agree. In the event of inconsistency between this Annex and any parent framework provision regarding the classification of military incidents, escalation buffers, or back-channel de-confliction procedures, this Annex governs those matters.

Cross-Reference

This Annex operates in conjunction with Annex O (IAEA Access and Site Integrity Protocol), Annex P (Damaged Material Protocol), and Annex Q (IRGC Access Compliance Protocol). The Escalation Buffer Period applies to kinetic incidents that occur during IAEA inspections, damaged material operations, or IRGC access compliance activities, provided the PCC classifies such incidents as Tactical Incidents under Article 2.

ARTICLE 1: DEFINITIONS

OPERATIVE AND BINDING

For purposes of this Annex, the following terms have the meanings set forth below. These definitions are specific to this Annex and are not imported into any parent framework unless the parent framework explicitly so provides.

1.1 Tactical Incident

A "Tactical Incident" is a localized military encounter that meets all of the following criteria:

Criterion	Included (Tactical)	Excluded (Strategic Breach Indicators)
Scale	Single drone or UAV intercepted or off-course; single naval vessel briefly violating stand-off distances; single rocket or missile intercepted or landing unpopulated	Multiple simultaneous strikes; sustained barrage; coordinated multi-platform attack
Casualties	No fatalities; minor injuries only; no civilian harm	10 or more fatalities; mass casualties; civilian deaths
Intent	No demonstrable hostile intent; navigational error; technical malfunction; unauthorized local action; defensive reflex	Clear order from senior leadership; pattern of hostile action; deliberate targeting of populated areas or critical infrastructure
Infrastructure	No significant infrastructure damage; cosmetic or minor damage only	Destruction of nuclear facilities; disablement of ports; destruction of Hormuz transit infrastructure
Pattern	Isolated event; first occurrence in 30-day period	Third or more similar incident within 30 days (triggers pattern aggregation under Article 2.3)
Cyber / EW	Probe without destructive effect; reconnaissance; temporary disruption	Destructive cyberattack; permanent disablement of critical systems; attack on nuclear safety systems

Tactical Incident Examples: A reconnaissance drone veers off course and crosses into the other Party's airspace; a naval patrol vessel momentarily enters the 5-nautical-mile stand-off zone while pursuing a suspected smuggler; a missile defense system fires an interceptor at a perceived threat that turns out to be a commercial aircraft; a cyber probe scans port facility networks without attempting intrusion.

1.2 Strategic Breach

A "Strategic Breach" is an action that fundamentally undermines the framework and meets at least one of the following criteria:

- **Nuclear:** Enrichment of uranium above 3.67% U-235; diversion of fissile material from IAEA custody; tampering with IAEA monitoring equipment with intent to conceal nuclear activity
- **Kinetic:** A military attack causing 10 or more fatalities; a sustained military campaign against the other Party's forces or territory; use of weapons of mass destruction (chemical, biological, or nuclear)
- **Maritime:** A blockade of the Strait of Hormuz preventing transit of commercial vessels; deliberate sinking or disabling of commercial shipping; mining of international waters
- **Command:** A clear, verifiable order from senior leadership (Supreme Leader, President, or equivalent for Iran; President or Secretary of Defense for the United States) to commit any of the above
- **Pattern:** Three or more Tactical Incidents within any 30-day period, aggregated under Article 2.3

A Strategic Breach is declared only through the procedures specified in Article 5. Neither Party unilaterally declares a Strategic Breach during the Escalation Buffer Period.

1.3 Escalation Buffer Period

The "Escalation Buffer Period" is the 72-hour window following any incident provisionally classified as a Tactical Incident, during which:

- [1] Neither Party declares a material breach of any parent framework
- [2] Neither Party takes retaliatory military action (self-defense against an ongoing armed attack is preserved)
- [3] The back-channel de-confliction mechanism described in Article 3 operates at full capacity
- [4] The PCC conducts its classification review under Article 2
- [5] All core obligations of any parent framework (ceasefire, humanitarian access, IAEA monitoring, stand-off postures) remain in full force

The Escalation Buffer Period is designed to provide a structured "thinking window" — not to shield bad actors, but to prevent good-faith frameworks from collapsing due to the fog of war.

1.4 Back-Channel De-Confliction Mechanism

The "Back-Channel De-Confliction Mechanism" is the secure, 24/7 communication channel established under Article 3, routed through neutral facilitators, for the exclusive purpose of absorbing field-level shocks and enabling real-time de-escalation between the Parties. The mechanism is privileged, confidential, and operates independently of all formal diplomatic channels.

ARTICLE 2: CLASSIFICATION OF INCIDENTS

OPERATIVE AND BINDING

Within six (6) hours of any military incident, both Parties provide a preliminary classification to the PCC. The PCC issues a binding classification within seventy-two (72) hours. If the PCC cannot classify within 72 hours, the incident receives automatic classification as a Tactical Incident.

A pattern of three or more Tactical Incidents within any 30-day period is aggregated and reclassified as a Strategic Breach by PCC majority vote.

2.1 Preliminary Classification

Within six (6) hours of any military incident, each Party submits to the PCC a preliminary classification of the incident as one of the following:

Classification	Criteria	Immediate Effect	Next Steps
Tactical Incident	Incident meets all criteria in Article 1.1	72-hour Escalation Buffer Period activates automatically	PCC conducts 72-hour review; back-channel opens
Strategic Breach	Incident meets at least one criterion in Article 1.2	No Escalation Buffer Period; Article 5 procedures apply immediately	PCC emergency session within 12 hours; Tier assessment begins
Unclear	Insufficient information to classify within 6 hours	Defaults to Tactical Incident; 72-hour buffer activates	PCC investigation proceeds under buffer; reclassification possible within 72 hours

Submission Requirements

Each Party's preliminary classification includes:

- [1] A factual narrative of the incident (time, location, platforms involved, sequence of events)
- [2] The Party's assessment of intent (accidental, navigational error, defensive, hostile)
- [3] Any available forensic data (radar tracks, GPS logs, communications intercepts, damage assessments)
- [4] A proposed classification with supporting rationale
- [5] Any requests for clarification from the other Party

2.2 PCC Binding Classification

The PCC issues a binding classification within seventy-two (72) hours of the incident, based on:

- [1] **Forensic telemetry:** Radar tracks, satellite imagery, signals intelligence, and other technical data submitted by either Party or guarantor states

- [2] **On-the-ground reporting:** Observations from neutral observers, where available (UN monitors, Joint Humanitarian Transit Authority observers, third-party military attaches)
- [3] **Submissions from both Parties:** Preliminary classifications, clarifications, and any additional evidence submitted during the 72-hour period
- [4] **Back-channel communications:** Privileged de-confliction communications inform the PCC's understanding of intent but are not used as evidence of breach or admission

Default Classification

If the PCC cannot reach a binding classification within 72 hours, the incident receives automatic classification as a Tactical Incident. This default does not preclude later reclassification if new evidence emerges. No Tier escalation occurs based on an incident that receives the default classification.

Voting

PCC classification decisions are by majority vote of all PCC members, excluding the representatives of the two Parties directly involved in the incident. The US and Iranian PCC members participate in deliberations but do not vote on the classification of an incident involving their respective state. This ensures neutral assessment.

2.3 Pattern Aggregation

A pattern of Tactical Incidents indicates systematic bad faith or escalating tension that warrants reclassification. The following rule applies:

Pattern Aggregation Rule

If three (3) or more incidents are classified as Tactical Incidents within any 30-day period, the PCC convenes a special session to review the pattern. By majority vote of its non-party members, the PCC aggregates the pattern and reclassifies it as a Strategic Breach. This reclassification is not automatic; it requires affirmative PCC determination that the pattern demonstrates systematic intent to undermine the framework, escalate tensions, or test the boundaries of the escalation buffer.

Factors the PCC considers in pattern aggregation include: similarity of incident types; geographic concentration; temporal clustering; whether incidents occurred during sensitive framework milestones; statements or communications from either Party; and whether either Party took corrective measures between incidents.

ARTICLE 3: BACK-CHANNEL DE-CONFLICTION MECHANISM

OPERATIVE AND BINDING

A dedicated, secure, 24/7 back-channel de-confliction mechanism is established, routed through the neutral facilitators specified herein. Each Party designates up to three senior officials with authority to communicate through the back-channel. Designations are provided to the PCC within 24 hours of this Annex's entry into force. Any communication through the back-channel receives an initial acknowledgment within 30 minutes and a substantive response within 4 hours. Back-channel communications are privileged and are not used as evidence of breach or admission in any PCC or arbitration proceeding.

3.1 Facilitator Routing

The back-channel is routed through the following neutral facilitators, in descending order of priority:

Priority	Facilitator	Routing Point	Activation Trigger
Primary	Islamic Republic of Pakistan	Prime Minister's Office; dedicated secure line staffed 24/7 by senior foreign ministry officials	Any Tactical Incident; either Party requests activation
Secondary	Swiss Confederation	Federal Department of Foreign Affairs; secure diplomatic channel via Bern	Primary facilitator unavailable or conflicted; either Party requests switch
Tertiary	Sultanate of Oman	Foreign Ministry; secure channel via Muscat	Both primary and secondary unavailable; PCC designates Omani facilitation

Facilitator Neutrality

Facilitators do not edit, delay, or modify communications between the Parties except to ensure secure transmission. Facilitators provide technical assistance (translation, secure transcription) but do not inject their own analysis or recommendations unless both Parties specifically request it. Facilitators maintain complete confidentiality of all back-channel communications.

Handover Protocol

If the primary facilitator becomes unavailable, the secondary is activated within 2 hours. If both primary and secondary are unavailable, the tertiary is activated within 4 hours. The PCC Secretariat monitors facilitator availability and coordinates handovers.

3.2 Designated Officials

Each Party designates up to three (3) senior officials with authority to communicate through the back-channel. The designated officials:

- Hold the rank of Deputy Minister, Deputy National Security Advisor, or equivalent (military rank of Major General or above for military officials)
- Have direct access to their respective national leadership within 2 hours
- Are fluent in English or provided with a certified interpreter available on 30 minutes' notice
- Are reachable 24 hours per day, 7 days per week through secure channels
- Are empowered to negotiate de-escalation proposals and commit their government to specific actions

Designations are provided to the PCC Secretariat within 24 hours of this Annex's entry into force. The PCC distributes the designations to all facilitators. Each Party replaces a designated official with 24 hours' written notice to the PCC.

3.3 Permitted Uses and Prohibited Uses

Permitted Uses

The back-channel is used exclusively for the following purposes:

- [1] **Real-time notification of Tactical Incidents:** Immediate alert that an incident has occurred, with preliminary factual summary
- [2] **Clarification of intent:** Explanations such as "the drone that crossed the border was a navigation error, not a reconnaissance mission" or "the patrol vessel entered the stand-off zone while pursuing a suspected smuggler and has been recalled"
- [3] **De-escalation proposals:** Concrete offers such as "if you stand down your patrol in Sector 4, we recall our aircraft within 30 minutes"
- [4] **Coordination of incident investigation:** Arrangements for joint forensic assessment, shared radar data, or neutral observer access
- [5] **Confirmation of stand-downs or corrective actions:** Verification that proposed de-escalation measures have been implemented

Prohibited Uses

The back-channel is not used for:

- Threats, ultimatums, or coercive demands
- Negotiation of framework terms or substantive amendments
- Public diplomacy or media messaging

- Any purpose unrelated to immediate de-confliction of a specific incident

3.4 Response Time Requirements

Type of Communication	Acknowledgment	Substantive Response	Consequence of Non-Response
Tactical Incident notification	Within 30 minutes	Within 4 hours with initial assessment	PCC automatically notified; incident classified as potentially Strategic if no response within 12 hours
Intent clarification request	Within 30 minutes	Within 4 hours with factual explanation	PCC informed; other Party's preliminary classification given greater weight
De-escalation proposal	Within 30 minutes	Within 4 hours (accept, reject, or counter)	Proposal deemed rejected; PCC proposes alternative
Stand-down confirmation	Within 30 minutes	Within 2 hours with verification	Stand-down not confirmed; buffer period is extended

3.5 Confidentiality and Privilege

Back-channel communications are privileged and subject to the following confidentiality protections:

- [1] **Non-admissibility:** Back-channel communications are not used as evidence of breach, admission of liability, or acknowledgment of wrongdoing in any PCC proceeding, PCA arbitration, UN Security Council debate, or domestic legal proceeding.
- [2] **No recording without consent:** Neither Party records back-channel communications without the express written consent of the other Party and the facilitating state.
- [3] **Limited distribution:** Back-channel communications are shared only with the designated officials of each Party, the active facilitator, and the PCC Secretary-General (for administrative purposes only). No wider distribution occurs without mutual consent.
- [4] **Confidentiality of intent clarifications:** Statements made through the back-channel clarifying intent (e.g., "the drone was off course") are not cited by either Party in public statements or diplomatic correspondence without mutual consent.
- [5] **Exception for criminal conduct:** The privilege does not extend to communications evidencing war crimes, crimes against humanity, or genocide. Facilitators have a duty to report such evidence to appropriate international authorities.

Purpose of Privilege: The confidentiality of back-channel communications is essential to the functioning of this Annex. Without it, neither Party risks frank communication for fear that clarifications or de-escalation offers become weaponized in future disputes. The privilege creates a "safe space" for honest mistake-correction and rapid de-escalation.

ARTICLE 4: ESCALATION BUFFER PERIOD

OPERATIVE AND BINDING

Upon the occurrence of any incident classified as Tactical, or provisionally classified as Tactical pending PCC review, a 72-hour Escalation Buffer Period activates automatically. During the Escalation Buffer Period, neither Party declares a material breach, takes retaliatory military action, or invokes Tier 2 or Tier 3 consequences. Self-defense against an ongoing armed attack is preserved. The Escalation Buffer Period is extendable by mutual agreement of the Parties through the back-channel, or by PCC majority vote, for up to an additional 72 hours.

4.1 Automatic Activation

The Escalation Buffer Period activates automatically upon any of the following triggers:

- [1] Either Party submits a preliminary classification of "Tactical Incident" to the PCC
- [2] Either Party submits a preliminary classification of "Unclear" to the PCC (defaulting to Tactical)
- [3] The PCC Secretary-General receives credible reports of a military incident from guarantor states, neutral observers, or media sources, and neither Party has yet submitted a classification

Activation is automatic — no Party needs to request it, and no Party vetoes it. The 72-hour clock begins at the time of the incident (as determined by the earliest credible timestamp: radar, satellite, or communications intercept).

4.2 Prohibited Actions During Buffer

During the Escalation Buffer Period, the following actions are prohibited:

Category	Prohibited	Permitted
Breach Declarations	Neither Party declares a material breach of any parent framework; neither Party invokes governance tier consequences; neither Party suspends obligations	Either Party notifies the PCC of concerns; either Party requests expedited classification review
Military Action	No retaliatory strikes; no punitive military operations; no tit-for-tat responses to the incident	Self-defense against ongoing armed attack; force protection measures; defensive repositioning; humanitarian operations
Economic Measures	No new sanctions designations; no freezing of assets; no trade restrictions imposed in response to the incident	Existing sanctions remain enforceable; routine economic measures unrelated to the incident
Diplomatic Measures	No public accusations of breach; no UN Security Council filings alleging breach; no media campaigns attributing blame	Private PCC communications; back-channel de-confliction; confidential guarantor state briefings

Framework	No suspension of ceasefire; no denial of humanitarian	All parent framework obligations remain in full
Obligations	access; no interference with IAEA monitoring	force and the Parties perform them

Self-Defense Exception

Nothing in this Article limits the inherent right of self-defense under international law against an ongoing armed attack. If a Tactical Incident escalates into an ongoing armed attack during the Buffer Period, the attacked Party takes necessary defensive measures and notifies the PCC within 2 hours. The PCC determines within 12 hours whether the defensive response was proportionate. A disproportionate defensive response potentially constitutes a Tactical Incident triggering a new Buffer Period.

4.3 Preserved Actions During Buffer

The Escalation Buffer Period does not suspend any obligations under any parent framework. The following obligations remain in full force throughout the Buffer Period:

- Ceasefire commitments (no offensive military operations)
- Humanitarian corridor access (zero-fee transit through Hormuz)
- IAEA inspector access to all declared facilities
- Stand-off posture requirements (naval and air)
- HEU freeze and custody transfer obligations
- Sanctions relief tranche releases on their established timeline
- All monitoring and verification obligations

A Party that violates any preserved obligation during the Buffer Period is subject to the standard breach procedures of the parent framework, unaffected by this Annex. The Buffer Period protects against incident-derived escalation; it does not create a general compliance holiday.

4.4 Extension of Buffer Period

The Escalation Buffer Period extends beyond the initial 72 hours under the following conditions:

- [1] **Mutual agreement:** Both Parties agree through the back-channel to extend the buffer for a specified period (up to 72 additional hours). The extension takes effect immediately upon mutual notification to the PCC.
- [2] **PCC majority vote:** If one Party requests extension and the other declines, the requesting Party petitions the PCC. The PCC orders an extension of up to 72 hours by majority vote of its non-party members, if it determines that additional time is necessary to complete forensic assessment or achieve de-escalation.
- [3] **Maximum extension:** No single incident has a Buffer Period exceeding 144 hours (72 hours initial + 72 hours extension) unless both Parties agree to a further extension in writing.

ARTICLE 5: STRATEGIC BREACH DETERMINATION

OPERATIVE AND BINDING

A Strategic Breach is declared only after: (a) the 72-hour Escalation Buffer Period has expired; (b) the PCC has issued a binding classification of Strategic Breach; (c) both Parties have had an opportunity to submit evidence and argument to the PCC; and (d) the PCC has confirmed by majority vote of its non-party members that the incident meets the definition of Strategic Breach.

No Strategic Breach is declared during the Escalation Buffer Period. If a Party declares a Strategic Breach during the Buffer Period, the declaration is void and the PCC and all guarantor states disregard it.

Strategic Breach Determination Checklist

Step	Condition	Requirement	Consequence of Failure
1	Buffer Period Expired	72 hours (or extended period) has elapsed since incident; no active Buffer Period remains	Declaration is void if made during Buffer Period
2	PCC Binding Classification	PCC has issued written classification of "Strategic Breach" with factual basis and voting record	No declaration permitted without PCC classification
3	Opportunity to Be Heard	Both Parties have submitted evidence and argument; at least one hearing held (in person or video)	Proceeding void if either Party is denied opportunity to present evidence
4	Neutral Majority Vote	PCC non-party members (excluding US and Iran reps) vote by majority to confirm Strategic Breach	Tie or insufficient votes = classification fails; incident retains last valid classification
5	24-Hour Notice	Declaring Party provides 24 hours' written notice to other Party and PCC before taking military action	Military response without notice is itself a Tactical Incident triggering a new Buffer

Consequences of Strategic Breach Declaration

If all five conditions are met and the Parties declare a Strategic Breach:

- [1] Tier 2 or Tier 3 consequences under the parent framework governance provisions apply proportionately
- [2] The declaring Party provides 24 hours' written notice to the other Party and the PCC before taking any military action in response
- [3] Guarantor states are notified immediately and exercise their Mandatory Escalation Pause authority under the parent framework
- [4] The PCC convenes an emergency session within 12 hours to assess proportionality of any proposed response

Pattern Aggregation Reclassification

If the Parties declare a Strategic Breach based on pattern aggregation under Article 2.3, the consequences apply to the pattern as a whole, not to each individual Tactical Incident retroactively. Individual incidents

within the pattern that the Parties properly managed through the Escalation Buffer Period are not reclassified or penalized individually.

ARTICLE 6: ROGUE ACTOR AND FALSE-FLAG PROTECTION

OPERATIVE AND BINDING

If an incident is caused by a rogue commander, unauthorized unit, or third-party false-flag operation, the incident is not attributed to the state for purposes of breach classification, provided the affected state meets the conditions specified herein.

A state that fails to disavow a rogue action within 24 hours is deemed to have adopted the action, and it is classifiable as a Strategic Breach.

A Party that knowingly provides false information about an incident to the PCC or through the back-channel is subject to Tier 3 breach procedures.

Rogue Actor — Attribution Shield

An incident is not attributed to a state if all of the following conditions are met:

Scenario	Attribution Rule	Required Response	Consequence of Inaction
Rogue Commander	Action by military officer acting without authorization from national command; not attributable if disavowed	Public disavowal within 24h; commitment to discipline; joint investigation offer; back-channel notification	Failure to disavow = adoption of action; is classifiable as Strategic Breach
Unauthorized Unit	Military unit acting outside its orders; not attributable if chain-of-command demonstrates no authorization	Same as above plus: presentation of unit's original orders; identification of officers responsible	Same as above
Third-Party False Flag	Attack by non-state actor or third state designed to appear as originating from one Party; not attributable to either Party if proven	Joint investigation invitation; intelligence sharing through PCC; NTM evidence from guarantor states	If false-flag proven but either Party obstructs investigation, obstructing Party bears Tier 2 consequence
Cyber False Flag	Cyberattack using spoofed identities or compromised infrastructure to appear as originating from one Party	Technical forensic cooperation; sharing of attack signatures; joint attribution assessment through PCC technical panel	If technical evidence clearly points to one Party and that Party refuses cooperation, presumption of attribution applies

Disavowal Requirements

A valid disavowal of a rogue action includes:

- [1] Public statement by a senior official (Minister-level or above) explicitly disavowing the action
- [2] Commitment to disciplinary or legal proceedings against those responsible
- [3] Offer of joint investigation to establish facts and prevent recurrence

[4] Notification through the back-channel within 24 hours of the disavowal

24-Hour Adoption Rule

If a state fails to issue a valid disavowal within 24 hours of the incident, the action is deemed adopted by the state. The incident is then classified as a Tactical Incident (if it meets those criteria) or a Strategic Breach (if it meets those criteria) without the benefit of the rogue actor shield. The 24-hour clock begins at the time the PCC notifies the state of the incident and requests a disavowal.

False Information Penalty

A Party that knowingly provides false information about an incident to the PCC, through the back-channel, or to guarantor states is subject to Tier 3 breach procedures under the parent framework. "Knowingly" means: the Party knew or had reason to know that the information was materially false; the false information was provided with intent to influence the classification process; and the false information concerned a material fact (not a minor detail or interpretation). The PCC determines whether false information was provided knowingly by majority vote of non-party members.

Good-Faith Mistake Exception

A Party that provides incorrect information in good faith, based on incomplete early assessment, and subsequently corrects the record within 48 hours, is not subject to the false information penalty. This exception applies only to preliminary assessments that are later corrected, not to sustained false narratives.

ARTICLE 7: INCORPORATION BY REFERENCE

OPERATIVE AND BINDING

This Annex is incorporable into any existing or future agreement between the Parties through the following adoption sentence:

"The Parties adopt Annex R (Escalation Buffer Protocol) as an operative provision of this Agreement. In the event of any inconsistency, Annex R governs with respect to the classification of military incidents, escalation buffers, and back-channel de-confliction procedures."

No further amendment of the parent framework is needed. This Annex enters into force upon the later of: (a) signature by both Parties; or (b) the effective date of the parent framework into which the Parties incorporate it.

ARTICLE 7-A: RELATIONSHIP TO OTHER ANNEXES

OPERATIVE AND BINDING

This Annex operates independently of Annexes O, P, and Q, but is designed to complement them. If Annexes O, P, or Q are in force, kinetic incidents that occur during IAEA inspections, damaged material operations, or IRGC access compliance activities are subject to this Annex's classification and buffer procedures, provided they are not already classified as Strategic Breaches under those annexes.

If the Parties adopt this Annex without Annex O, the Escalation Buffer Period still operates, but the PCC classification review under Article 2 relies on available evidence without the benefit of IAEA monitoring data or Annex O forensic procedures.

ARTICLE 8: PROVISIONAL APPLICATION

OPERATIVE AND BINDING

8.1 The Parties agree to apply this Annex provisionally for a period of ninety (90) days, pending formal ratification or incorporation into a parent framework.

8.2 Provisional application is effected by an exchange of diplomatic notes between the Parties, copied to the Joint Secretariat and all guarantor states.

8.3 During provisional application, all provisions of this Annex are operative and binding. The back-channel de-confliction mechanism activates immediately upon provisional application.

8.4 Either Party terminates provisional application with fourteen (14) days' written notice to the other Party, the Joint Secretariat, and the IAEA Director General.

8.5 Termination of provisional application does not affect incidents that occurred during the provisional period. The classification, buffer, and consequence procedures of this Annex continue to apply to any incident that occurred during provisional application, even if the Parties subsequently terminate this Annex.

ARTICLE 9: SEVERABILITY

OPERATIVE AND BINDING

9.1 If any provision of this Annex is found by a court of competent jurisdiction or arbitral panel to be unenforceable, the remaining provisions remain in full force and effect.

9.2 The Parties promptly negotiate a replacement for any provision found unenforceable, preserving the original intent to the maximum extent possible. If the Parties cannot agree on a replacement within thirty (30) days, the matter is referred to the PCA for binding determination under the procedures specified in Annex O, Article 6 (or, if Annex O is not in force, under standard PCA Optional Rules).

9.3 If the unenforceable provision is essential to the Annex's operation (as determined by the PCC or, if no PCC exists, by mutual agreement of the Parties), the Parties enter into good-faith negotiations to restructure the Annex. During such negotiations, all other Annex provisions continue in force.

ARTICLE 10: DURATION AND WITHDRAWAL

OPERATIVE AND BINDING

10.1 This Annex remains in force indefinitely, unless: (a) both Parties agree in writing to terminate it; or (b) the parent framework into which it is incorporated terminates, and the Parties do not reaffirm this Annex within ninety (90) days of such termination.

10.2 Withdrawal from this Annex without withdrawal from the parent framework is not permitted. This Annex is integral to the escalation management architecture and is not severable unilaterally.

10.3 If the parent framework terminates and the Parties do not reaffirm this Annex within ninety (90) days, all obligations under this Annex expire, but the back-channel infrastructure is maintainable by mutual agreement of the Parties and the facilitating states for humanitarian and de-confliction purposes independent of any parent framework.

10.4 Implementation Flexibility. The Parties recognize that military circumstances evolve in ways not contemplated in this Annex. Timelines and technical requirements in this Annex are adjustable by mutual written agreement of both Parties, with notification to the PCC (or, if no PCC exists, to all guarantor states). Unilateral extension or modification is not permitted. Any mutually agreed adjustment specifies: the revised timeline or requirement; the technical justification; the conditions for return to the original timeline; and the notification provided.

SIGNATURE BLOCK

In witness whereof, the undersigned, being duly authorized by their respective governments, have signed this Annex R: Escalation Buffer Protocol.

Done at _____, this _____ day of _____, 2026, in triplicate in the English language.

For the Islamic Republic of Iran:

Name: _____
Title: _____
Date: _____

For the United States of America:

Name: _____
Title: _____
Date: _____

Witnessed by the Back-Channel Facilitators:

Islamic Republic of Pakistan (Primary)

Sultanate of Oman (Tertiary)

Swiss Confederation (Secondary)